IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No.129 - CP(CAA)/58(AHM)2022
in
CA(CAA)/32(AHM)2022

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Bhagwat Power Salaya Ltd **.....Applicant**
Essar Steel Metal Trading Ltd

Order delivered on ..15/05/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

PRESENT:

For the Applicant	: Ms. Dharmishta Raval, Adv.
For the Income Tax	: Ms. Pankti Shah, Adv. for Ms. Maithili Mehta
For the OL	: Mr. Suresh Shrivastava
For the RD	: Mr. Shiv Pal Singh, Assistant Director

ORDER

Learned Counsel Mr. Pankti Shah for the Income Tax Department appears and states that Report regarding Transferor Company, i.e., Bhagwat Power Salaya Ltd. is still awaited from the Department. She is directed to file reply within seven days, failing which the right to file reply regarding Transferor Company will be closed.

Regarding Transferee Company, Learned Counsel for the Income Tax Department states that there is outstanding demand of Rs.30.22 Crores.

Learned Counsel for the Petitioner Company undertakes to pay the demand due as per law as the Transferee Company will be surviving. On this statement, Learned Counsel for the Income Tax Department states that she has no objection with reference to Transferee Company regarding approval of the Scheme of Arrangement.

Mr. Suresh Shrivastava for the OL appears and states that Report has been filed and on their observations, reply has been received from the Petitioner Company. After going through the reply of the Petitioner Company and the commitments made in the said reply regarding compliances, they have no objection to approval of the Scheme.

List for hearing on 05.06.2023.

Sd- Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

SHAMMI KHAN
MEMBER (JUDICIAL)

Pathey Bhatt